BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, GHAZIABAD (U.P.)

Consumer Complaint No. 417 of 2026

IN THE MATTER OF:

Vikas Gandhi **...Complainant**

Versus

ACKO General Insurance Ltd. **...Opposite Party**

REJOINDER ON BEHALF OF THE COMPLAINANT TO THE WRITTEN STATEMENT FILED BY THE OPPOSITE PARTY

MOST RESPECTFULLY SHOWETH:

1. That the Complainant has received a copy of the Written Statement filed by the Opposite Party (hereinafter "the WS") and files this rejoinder in reply. The contents of the Complaint are reiterated and reaffirmed and may be read as part of this rejoinder. All averments in the WS are denied, except those specifically admitted hereinbelow. Nothing in the WS shall be deemed to be admitted by the Complainant for want of specific denial.

2. That in this rejoinder the paragraphs of the WS are referred to as "WS para" and the paragraphs of the Complaint as "Complaint para". The Annexures referred to are those already filed with the Complaint.

A. ADMISSIONS MADE BY THE OPPOSITE PARTY IN ITS WRITTEN STATEMENT

3. That before replying para-wise, the Complainant respectfully places before this Hon'ble Commission the following facts, which stand admitted by the Opposite Party in its own WS:

   (i) Policy No. ASHP202400001607, its period 04.11.2024 to 03.11.2025 and the Sum Insured of ₹10,00,000/- are admitted (WS paras 7 and 8). The Opposite Party has not pleaded that the policy had lapsed or was not in force on the date of hospitalisation.

   (ii) The hospitalisation at RS Maitri Health Care, Ghaziabad from 20.06.2025 to 21.06.2025, the diagnosis of "tight phimosis with balanitis with meatal stenosis" and the surgery of circumcision and meatoplasty are admitted (WS para 9).

   (iii) The answers in the Proposal Form, namely no medical condition, no prescribed medicines, no previous hospitalisation or surgery and no ongoing symptoms, are admitted (WS para 31). The Opposite Party has nowhere alleged any non-disclosure, misrepresentation or pre-existing disease.

(iv) The policy entry relied upon by the Opposite Party reads "Any Surgery of the genitourinary system **unless necessitated by malignancy**". The existence of this exception is admitted in WS paras 12 and 29.

(v) The findings of the Insurance Ombudsman in paras 13 and 14 of the Award dated 02.07.2026, that the surgery was medically necessary and that the Permanent Exclusion Clause 4.2.3 does not apply, are admitted. The Opposite Party has itself set out these findings in WS para 13, and has called Complaint para 25, which quotes them, a "matter of records" (WS para 39).

(vi) The Opposite Party admits that its email dated 25.06.2025, which stated that the procedure was "not related to a malignancy", "**was not a medical or histopathological opinion**" (WS para 47(iii)). In other words, the Opposite Party admits that when it rejected the claim, it had no medical opinion before it.

(vii) The Medical Certificate dated 12.07.2026 of the treating Urologist (Complaint para 14, Annexure C-12) and the medical literature (Complaint para 16, Annexure C-13) have not been denied. WS paras 28 and 30 only describe them as "matters of record" and "subject to strict proof". No medical opinion of any doctor to the contrary has been filed with the WS.

(viii) The claim amount is admitted at least to the extent of ₹31,846/- (WS paras 9 and 23).

4. That a reply such as "matter of record, subject to strict proof" is not a denial of the facts stated. Facts which are not specifically denied are to be taken as admitted. The principle of Order VIII Rules 3 and 5 of the Code of Civil Procedure is relied upon in this regard (Badat & Co. v. East India Trading Co., AIR 1964 SC 538).

B. REPLY TO THE PRELIMINARY SUBMISSIONS (WS PARAS 1 TO 4)

5. That WS para 1 is denied as framed. The Opposite Party describes itself as engaged in the business of "providing life insurance cover". The Opposite Party is a general insurance company (IRDAI Reg. No. 157) and the policy in question is a health insurance policy. The WS also refers to "Opposite Parties" in the plural (WS para 14 and the prayer), though there is only one Opposite Party in this case. These errors show that the WS has been prepared on a standard format without application of mind to the facts of this case.

6. That WS para 2 is denied for want of knowledge. The WS does not disclose the name or designation of the "authorized company officer" who has signed it. The copy served on the Complainant does not contain any board resolution, power of attorney or letter of authority in favour of the signatory, and the verification has been left undated ("Verified at Lucknow on this day of ....., 2026"). The Opposite Party is put to strict proof of the authority of the signatory.

7. That WS para 3 is a general denial and does not meet the specific facts stated in the Complaint. A denial "in totality" is not a denial of any particular fact.

8. That WS para 4 is denied. The Opposite Party cannot reserve to itself a right to change its defence at a later stage. In any case, as submitted below, the Opposite Party cannot go beyond the ground stated in its letter of repudiation.

C. REPLY TO THE PRELIMINARY OBJECTIONS (WS PARAS 5 AND 6)

9. That WS paras 5 and 6 are denied. It is denied that the claim falls within the waiting period, that it was "rightly repudiated", or that there is no deficiency in service. The two-year waiting period on genitourinary surgery is not absolute. The clause itself keeps out of the waiting period any surgery "necessitated by malignancy". In WS paras 5, 6 and 10 the Opposite Party has described the clause without these words. This exception is the real question in the present case, and the Opposite Party did not consider it at any stage.

10. That whether a surgery was "necessitated by malignancy" has to be judged from the condition for which it was done and the medical picture before the surgeon at that time, and not only from a laboratory report received after the diseased tissue had already been removed. The Histopathology Report itself records a "**cauliflower like lesion measures 3.5 x 3 x 0.8 cm**" on the foreskin (Annexure C-9). A growth of this kind cannot be declared free from malignancy without excision and biopsy, and that is why the treating Urologist removed it and sent it for histopathology. The surgery was itself the means of removing a lesion suspicious of malignancy and of finding out its nature.

11. That the report confirmed Balanitis Xerotica Obliterans (Lichen Sclerosus), which is a recognised pre-malignant condition of the penis. The Guidelines on Penile Cancer of the European Association of Urology list Lichen sclerosis among "Premalignant penile lesions (precursor lesions)" (Annexure C-13). The operating Urologist has certified that BXO "is a pre-malignant condition", that the surgery "was must", and that there was a "risk of penile cancer if not treated" (Annexure C-12). The words "No evidence of granuloma/dysplasia/malignancy seen" only show that the diseased tissue was removed before it turned into cancer. A surgery which removes a pre-cancerous lesion in time is necessitated by the danger of malignancy. It does not go out of cover merely because the surgery was done in time.

12. That the objection that the Complaint is liable to be dismissed is denied. The Complaint discloses deficiency in service and unfair trade practice as stated in Complaint para 33. The Opposite Party has not disputed the jurisdiction of this Hon'ble Commission or the limitation (WS paras 17 to 19).

D. REPLY TO THE FACTS OF THE CASE (WS PARAS 7 TO 14)

13. That WS para 7 is admitted only to the extent that the Complainant took Policy No. ASHP202400001607 online for the period 04.11.2024 to 03.11.2025, with a Sum Insured of ₹10,00,000/-, on a monthly premium plan. The rest of WS para 7, regarding "uberrima fidei", false declaration and the contract becoming "void ab initio", has no application to this case and is denied. The Opposite Party has never alleged, in its emails of 25.06.2025 and 26.06.2025, before the Insurance Ombudsman, or even in this WS, that any answer in the Proposal Form was false or that any fact was concealed. On the contrary, it admits the Proposal Form answers (WS para 31), and the Policy Schedule records "Permanent disease exclusion: No exclusion". These general submissions only seek to create a doubt where none exists.

14. That WS para 8 is admitted to the extent of the policy details. As to the entry "Instalments Paid: 12 out of 13", every instalment that fell due up to the date of hospitalisation and of the claim in June 2025 had been paid, and the policy was in force. The Opposite Party has not pleaded any lapse or default. Further, the Opposite Party itself renewed the policy as Policy No. ASHP202400001607R1 for the period 04.11.2025 to 03.11.2026, recording "First policy inception date: 04/11/2024" (Annexure C-1 colly.), which shows that the cover has been continuous.

15. That WS para 9 is admitted to the extent of the hospitalisation, diagnosis, surgery and claim number. The amount of ₹31,846/- stated by the Opposite Party is not the full claim. The Complainant has spent a total of **₹37,358/-**, and every bill is on record as Annexure C-5 (pages 79 to 85 of the paper-book), as under:

    (a) IPD Final Bill, RS Maitri Health Care, 20.06.2025 to 21.06.2025 (page 84) – ₹25,000/-

    (b) Pre-operative investigations, RS Maitri Health Care, 19.06.2025 (page 83) – ₹4,050/-

    (c) Diagnostic tests, HOD (House of Diagnostics), Ghaziabad (page 82) – ₹1,796/-

    (d) Urology consultation, RS Maitri Health Care, 19.06.2025 (page 85) – ₹1,000/-

    (e) Biopsy (histopathology) of the tissue removed in the surgery, 20.06.2025 (page 81) – ₹1,350/-

    (f) Medicines, Jaggi Medicos, 14.06.2025 (page 85) – ₹347/-

    (g) Medicines, Jaggi Medicos, 21.06.2025 (page 82) – ₹1,565/-

    (h) Medicines, RS Maitri Pharmacy, 22.06.2025 (page 80) – ₹1,250/-

    (i) Post-operative follow-up consultation, RS Maitri Health Care, 08.07.2025 (page 79) – ₹1,000/-

Total – ₹37,358/-

The figure of ₹31,846/- given by the Opposite Party is exactly the total of items (a) to (d) only. The balance of ₹5,512/- consists of the biopsy charges for the tissue removed in the very same surgery (₹1,350/-), medicines (₹347/- + ₹1,565/- + ₹1,250/- = ₹3,162/-) and the post-operative follow-up consultation (₹1,000/-). All of these are expenses of the same illness and treatment, incurred within the pre- and post-hospitalisation period covered by the policy. In any event, the claim was never rejected on the ground of quantum. The repudiation dated 26.06.2025 rests only on the waiting period, and the Opposite Party itself admits the claim to the extent of ₹31,846/-.

16. That WS para 10 is denied as framed. The Opposite Party has again described the waiting period as applying to "surgical interventions involving the genitourinary system", leaving out the words "unless necessitated by malignancy". The policy entry, as relied upon by the Opposite Party itself before the Insurance Ombudsman (Clause 4.1.2.f(3)), reads "Any Surgery of the genitourinary system unless necessitated by malignancy". The Opposite Party "observed" only that a genitourinary surgery had been done. It did not examine whether the exception applied, did not wait for the histopathology report and did not obtain any medical opinion.

17. That WS para 11 is admitted only to the extent that the claim was repudiated by email dated 26.06.2025, the text of which is reproduced there. That text itself shows that no reason was given: it does not name the listed condition, does not refer to the exception and does not refer to any medical record. It is denied that the repudiation was "rightful". An insurer is bound by the grounds stated in its letter of repudiation and cannot add new grounds before the Commission (Galada Power and Telecommunication Ltd. v. United India Insurance Co. Ltd., (2016) 14 SCC 161; Saurashtra Chemicals Ltd. v. National Insurance Co. Ltd., (2019) 19 SCC 70). The plea of uberrima fidei and false declaration now raised in the WS, which was never a ground of repudiation, therefore cannot be looked into.

18. That WS paras 12 and 13 are admitted only to the extent that the Complainant approached the Insurance Ombudsman, Noida, and that the Award dated 02.07.2026 was passed. The rest is denied as stated. In particular:

    (a) The Insurance Ombudsman held that "it is not disputed that the procedure was medically necessary" and that the surgery "would not be covered under the Permanent Exclusion clause 4.2.3 of the policy as it has been necessitated by illness and forming part of treatment" (Award paras 13 and 14). The Opposite Party accepts these findings in WS para 13 and has not challenged them.

(b) The Insurance Ombudsman decided the remaining question against the Complainant because, at the hearing, the "Complainant was asked if there was any post operative medical paper to this effect, to which there was no clear reply", and treated the Complainant's case as "a hypothetical projection of likelihood of malignancy devoid of medical papers (in the case) to this effect" (Award paras 11(b) and 17). The Opposite Party relies on this very aspect in WS para 21. That gap has since been filled by the Medical Certificate dated 12.07.2026 of the operating Urologist (Annexure C-12) and the medical literature (Annexure C-13), which were not before the Insurance Ombudsman.

(c) The Award was passed in the summary procedure under the Insurance Ombudsman Rules, 2017. It was not accepted by the Complainant and is not binding on him, and its forwarding letter expressly grants liberty to approach any other forum. It does not bar the present Complaint, which is to be decided by this Hon'ble Commission on the evidence now on record.

19. That WS para 14 is denied. The Opposite Party has not acted "in accordance with the policy terms, medical evidence". It has not produced any medical evidence at all, either at the claim stage, before the Insurance Ombudsman or with the WS. The only medical evidence on record, namely the Discharge Summary, the Histopathology Report and the certificate of the operating Urologist, supports the Complainant.

E. PARA-WISE REPLY (WS PARAS 15 TO 50)

20. That WS paras 15 to 19 describe Complaint paras 1 to 5 as matters of record. The status of the Complainant as a consumer, the jurisdiction of this Hon'ble Commission and the limitation are thus not disputed.

21. That WS para 20 is denied in so far as it denies Complaint para 6. Each date and event in Complaint para 6 is supported by a document on record, and the WS does not deny any particular date or event.

22. That WS para 21 is denied as framed. Complaint para 7 reproduces the entries of the hospital's own Discharge Summary (Annexure C-4), on which the Opposite Party itself relies in WS para 9. As regards the post-operative medical papers referred to by the Insurance Ombudsman, sub-para (b) of para 18 above is reiterated.

23. That WS para 22 describes Complaint para 8 as a matter of record. It thus stands admitted that the Complainant had urinary obstruction and infection, was given IV antibiotics, and was operated upon on the day of admission.

24. That WS para 23 has been replied to in para 15 above.

25. That WS para 24 describes Complaint para 10 as a matter of record. The contents of the Histopathology Report, including the "cauliflower like lesion" and the impression "Consistent with Lichen sclerosus (balanitis xerotica obliterans)", thus stand admitted.

26. That WS para 25 is denied. The Complainant has never alleged that BXO "constitutes malignancy" or that he had cancer. His case, as clearly stated in Complaint paras 11 and 31, is that BXO is a pre-malignant condition carrying a known risk of penile cancer, and that the surgery was necessitated by that condition. The Opposite Party has misstated the Complainant's case in order to deny it. The sentence "No evidence of granuloma/dysplasia/malignancy seen" has been dealt with in paras 10 and 11 above.

27. That WS para 26 gives no reply to Complaint para 12. The meaning of the medical terms explained therein is thus not disputed.

28. That WS para 27 is denied. The qualifications and position of the treating Urologist, Dr. Vaibhav Saxena, M.S. (BHU), M.Ch. Urology (AIIMS, New Delhi), are directly relevant, because his opinion is that of the specialist who examined and operated upon the Complainant. The Opposite Party has not disputed his qualifications or that he was the operating surgeon.

29. That WS para 28 describes Complaint para 14 (the Medical Certificate dated 12.07.2026) as a matter of record. The Opposite Party has not denied the contents of the certificate and has not filed the opinion of any doctor to the contrary. The certificate therefore stands unrebutted.

30. That WS para 29 is denied. The statement that "the medical records do not establish that the surgery was necessitated by malignancy" is the view of the Opposite Party's officers and not of any doctor. Against it stand the certificate of the operating surgeon and the medical literature. Paras 9 to 11 above are reiterated. The reference to "good faith" is misplaced, since the good faith of the Complainant has never been questioned.

31. That WS para 30 describes Complaint para 16 (the medical literature) as a matter of record and does not deny it. The fact that Lichen sclerosis is classified as a pre-malignant penile lesion therefore stands unrebutted.

32. That WS paras 31 and 32 admit the Proposal Form answers and the Policy Schedule. Para 13 above is reiterated.

33. That WS para 33 is denied. Even here the Opposite Party does not allege any suppression of fact. Its statement that the claim was "duly considered on the basis of the medical records" is incorrect. The claim was rejected on 25.06.2025, five days before the Histopathology Report dated 30.06.2025 came into existence, and the Opposite Party now admits that the email of 25.06.2025 "was not a medical or histopathological opinion"

(WS para 47(iii)). A claim rejected without any medical opinion, before the most important medical report had even been prepared, cannot be said to have been considered on the basis of the medical records.

34. That WS para 34 is denied. The Complainant has not claimed the enhanced Sum Insured of the renewed policy. The claim is of ₹37,358/- only, well within the Sum Insured of ₹10,00,000/- of the original Policy No. ASHP202400001607, under which it is made. The renewal was mentioned in Complaint para 20 only to show that the Opposite Party treats the cover as continuous from 04.11.2024 and continues to accept the Complainant's premium, while refusing the only claim ever made under the policy. The objection regarding retrospective application of the enhanced Sum Insured is therefore beside the point.

35. That WS para 35 admits the repudiation email dated 26.06.2025.

36. That WS para 36 is denied. The Opposite Party's email dated 25.06.2025 recorded that the procedure "is not related to a malignancy" (Annexure C-7), and this was written five days before the Histopathology Report dated 30.06.2025. Having admitted in WS para 47(iii) that this email "was not a medical or histopathological opinion", the Opposite Party cannot now deny that it reached a medical conclusion without any medical basis. Its reliance on the report dated 30.06.2025, which was not before it when it rejected the claim, is an afterthought. Para 18 above regarding the Award is reiterated.

37. That WS paras 37 and 38 are denied. The WS does not show where, in the rejection or the repudiation, the exception "unless necessitated by malignancy" was considered. The same unreasoned ground was given on 25.06.2025 and 26.06.2025, and was repeated by the Grievance Redressal Officer on 15.07.2026 even after the Award and the certificate of the treating doctor. This by itself is a deficiency in service.

38. That WS para 39 describes Complaint para 25 as a matter of record and thus admits the findings of the Insurance Ombudsman reproduced therein.

39. That WS paras 40 and 41 are denied. The Complainant has correctly quoted and described the Award, as can be seen from the Award itself (Annexure C-11). The only question that now remains is whether the exception "unless necessitated by malignancy" applies.

40. That WS para 42 admits the clause as borne out from the Policy Schedule. The Opposite Party gives no reply to the fact that the clause itself takes surgery necessitated by malignancy out of the waiting period.

41. That WS paras 43 and 44 are bare denials and are denied. Complaint paras 29 and 30 are reiterated. The policy does not define "necessitated by malignancy", does not exclude

pre-malignant conditions from the exception and does not require proof of established cancer.

42. That WS para 45 is denied. Paras 10, 11 and 26 above are reiterated.

43. That WS para 46 is denied. The Opposite Party says there is no ambiguity, but does not say what "necessitated by malignancy" means, or where the policy says that surgery for a pre-malignant lesion falls outside the exception. Read as the Opposite Party now reads it, the insured would have to wait for cancer to develop before the surgery is covered, which defeats the very purpose of the exception. If the words are capable of two meanings, the clause, having been drafted by the insurer alone, must be read in favour of the insured (General Assurance Society Ltd. v. Chandumull Jain, AIR 1966 SC 1644).

44. That WS para 47, including its sub-paras (i) to (vi), is denied, and the grounds in Complaint para 33 are reiterated. It is specifically submitted that:

(i) & (ii) The claim was not "duly considered". The Opposite Party did not examine the Histopathology Report, did not obtain any medical opinion and did not apply the exception in its own clause.

(iii) The admission that the email of 25.06.2025 "was not a medical or histopathological opinion" supports the Complainant's case.

(iv) The repudiation is a non-speaking one, as is evident from its own text reproduced in WS para 11.

(v) The Complainant relies on the medical evidence now on record, which this Hon'ble Commission is fully competent to consider. The Opposite Party gives no reason why the certificate of the operating surgeon should be ignored.

(vi) The Opposite Party has continued to accept premium and has renewed the policy, which is admitted in WS para 34.

45. That WS paras 48 and 49 are denied. Complaint paras 34 and 35 are reiterated. The Complainant has been kept out of his money since 26.06.2025 and has had to approach the grievance cell of the Opposite Party, the Insurance Ombudsman and now this Hon'ble Commission, which has caused him financial loss, mental agony and harassment.

46. That WS para 50 and its sub-paras (a) to (e) are denied. The Complainant does not ask this Hon'ble Commission to go beyond the terms of the policy. He asks only that the terms be applied as written, including the exception "unless necessitated by malignancy" which the Opposite Party has left out. The quantum has been dealt with in para 15 above. The prayers in Complaint para 36 are reiterated.

F. REPLY TO THE PRAYER IN THE WRITTEN STATEMENT

47. That the prayer in the WS for dismissal of the Complaint "with exemplary cost" is denied. The Complainant has pursued his lawful remedies in proper order: first with the Opposite Party, then before the Insurance Ombudsman, and now before this Hon'ble Commission under the liberty granted in the Ombudsman's forwarding letter. A consumer seeking payment of a genuine claim supported by hospital records, a biopsy report and the certificate of the operating surgeon cannot be said to have misused the process of law.

PRAYER

48. It is, therefore, most respectfully prayed that this Hon'ble Commission may be pleased to:

(a) take the present rejoinder on record;

(b) reject the defence raised by the Opposite Party in its Written Statement;

(c) allow the Complaint as prayed for in para 36 thereof, namely ₹37,358/- with interest @ 12% per annum from 26.06.2025 till realisation, ₹1,00,000/- as compensation for mental agony and harassment, and ₹25,000/- as cost of proceedings; and

(d) pass such other or further order as this Hon'ble Commission may deem fit and proper in the facts and circumstances of the case.

AND FOR THIS ACT OF KINDNESS, THE COMPLAINANT SHALL EVER PRAY.

Place: Ghaziabad
Date: ____ / ____ / 2026

COMPLAINANT
(Vikas Gandhi)

VERIFICATION

I, Vikas Gandhi, S/o Shri Surendra Gandhi, aged about 54 years, R/o D-20, 1st Floor, Dayanand Nagar, Ghaziabad, Uttar Pradesh – 201001, the Complainant above-named, do hereby verify that the contents of paras 1 to 48 of the above rejoinder are true and correct to my knowledge and belief and are based on the documents on record, that the legal submissions are based on advice believed to be correct, and that nothing material has been concealed therefrom.

Verified at Ghaziabad on this ____ day of _____, 2026.

COMPLAINANT
(Vikas Gandhi)

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, GHAZIABAD (U.P.)

Consumer Complaint No. 417 of 2026

IN THE MATTER OF:

Vikas Gandhi **...Complainant**

Versus

ACKO General Insurance Ltd. **...Opposite Party**

AFFIDAVIT IN SUPPORT OF THE REJOINDER

I, Vikas Gandhi, S/o Shri Surendra Gandhi, aged about 54 years, R/o D-20, 1st Floor, Dayanand Nagar, Ghaziabad, Uttar Pradesh – 201001, do hereby solemnly affirm and declare as under:

1. That I am the Complainant in the above case, am fully conversant with its facts and circumstances, and am competent to swear this affidavit.

2. That the accompanying rejoinder has been drafted under my instructions. I have read and understood its contents, which are true and correct to my knowledge and belief and are based on the documents on record. The same are not repeated here for the sake of brevity and may be read as part of this affidavit.

3. That the documents referred to in the rejoinder are already on record with the Complaint as Annexures C-1 to C-13, and are true copies of their originals.

DEPONENT
(Vikas Gandhi)

VERIFICATION

Verified at Ghaziabad on this ____ day of _____, 2026 that the contents of paras 1 to 3 of the above affidavit are true and correct to my knowledge, that no part of it is false, and that nothing material has been concealed therefrom.

DEPONENT
(Vikas Gandhi)